

Franciscus Dylan Rosario (IN PRO PER)
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IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

**APPELLANT'S NOTICE OF MOTION AND
MOTION FOR
MANDATORY JUDICIAL NOTICE AND
ALTERNATIVE
REQUEST FOR LIMITED RECORD SETTLEMENT**

California Rules of Court, rules 8.54, 8.155(c), 8.252, 8.268,
8.500(c)(2);

Evidence Code sections 451(a), 452, 459

Memorandum of Points and Authorities;

Declaration of Franciscus Dylan Rosario filed separately;
proposed order filed separately

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NOTICE OF MOTION AND MOTION FOR MANDATORY JUDICIAL NOTICE

TO THE HONORABLE PRESIDING JUSTICE AND ASSOCIATE JUSTICES OF THE COURT OF APPEAL, FIRST APPELLATE DISTRICT, DIVISION THREE, AND TO DEFENDANTS AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that Plaintiff and Appellant Francis Dylan Rosario hereby moves this Court, pursuant to California Rules of Court, rule 8.252, and California Evidence Code sections 451, subdivision (a), 452, subdivision (d), and 459, subdivision (a), for an order taking judicial notice of the California public statutory enactments, decisional law, and trial court records specified below. If the Court continues to rely on the dis-

puted unreported conference concerning Jury Request Number 1 as dispositive of forfeiture, Appellant alternatively requests an order under California Rules of Court, rule 8.155(c)(2), directing the superior court to settle that limited record dispute.

This Motion is submitted concurrently with, and in support of, Appellant's Petition for Rehearing under California Rules of Court, rule 8.268. Its purpose is limited: to place before the Court the law and the court records that bear on the Petition, and to establish that these authorities and record facts were presented to this Court on rehearing within the meaning of rule 8.500(c)(2). The legal argument is in the Petition, not in this Motion.

MATTERS OF WHICH JUDICIAL NOTICE IS REQUESTED

A. Constitutional and public statutory law (Evid. Code, sections 451, subd. (a), 459, subd. (a); notice mandatory)

1. **California Code of Civil Procedure section 647:** Providing that an order "giving an instruction, refusing to give an instruction, or modifying an instruction requested" is among the orders that "are deemed excepted to."
2. **California Vehicle Code section 22107:** Governing turning movements and signals, the statute identified in Jury Request Form Number 1.

3. **California Vehicle Code section 21804, subdivision (a):** Governing the duty to yield on entering or crossing a highway from public or private property or an alley, the second provision named in Jury Request Form Number 1 and pleaded in Defense Exhibit 500.
4. **California Code of Civil Procedure section 614:** Providing that after the jury has retired for deliberation, if the jurors desire to be informed of any point of law arising in the cause, "the information required must be given in the presence of, or after notice to, the parties or counsel."
5. **California Vehicle Code section 360:** Defining "highway" to include a street, the definition the trial court supplied in answering Jury Request Number 2.
6. **California Evidence Code section 140:** Defining "evidence" as testimony, writings, material objects, or other things presented to the senses that are offered to prove the existence or nonexistence of a fact.
7. **California Evidence Code section 310, subdivision (a):** Providing that "All questions of law (including but not limited to the pendency and effect of proceedings, the construction of statutes and other writings, and other rules of evidence) are to be decided by the court, and not by the jury."

8. **California Evidence Code section 451, subdivision (a):** Providing that the decisional, constitutional, and public statutory law of this state and of the United States is a matter of mandatory judicial notice.
9. **California Evidence Code section 669:** Providing that a presumption of failure to exercise due care arises from an unexcused violation of a statute designed to prevent the kind of harm suffered, the provision the Petition applies to Vehicle Code section 22107 as the legislative measure of care for the tried turn. Appellant does not ask this Court to decide excuse or rebuttal.
10. **California Constitution, article VI, section 13:** Providing that a judgment shall not be set aside for error as to any matter of procedure unless the error complained of resulted in a miscarriage of justice, the constitutional prejudice standard the Petition applies in Part III.D.
11. **California Civil Code section 3513:** Providing that anyone may waive the advantage of a law intended solely for that person's benefit, but that a law established for a public reason may not be contravened by a private agreement.
12. **California Code of Civil Procedure section 607a:** Governing the pre-submission process by which parties propose instructions before the cause is submitted, the pro-

vision that governs the instruction-proposal rule stated in *Hurley*, as distinguished from the deliberation-stage duty section 614 imposes.

13. **California Penal Code section 1138:** The criminal analog of Code of Civil Procedure section 614, governing the information to be given when deliberating jurors in a criminal case desire to be informed on a point of law, the provision construed in *Beardslee* and in the *Bohana* analysis the opinion cites. This section is distinct from the former Code of Civil Procedure section 1138 quoted in the *Bibb* entry in Part B.

B. Decisional law (Evid. Code, sections 451, subd. (a), 459, subd. (a); notice mandatory)

1. *Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7: Holding, with citation to Code of Civil Procedure section 647, that a party may challenge an erroneous instruction on appeal without having objected at trial, and stating that "No objection was necessary to preserve this claim."
2. *Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591, 593-595: Applying Code of Civil Procedure section 647 to a supplemental charge after the jury had retired, and construing section 614's duty to respond to a deliberating

jury's request on a point of law.

3. *Auto Equity Sales, Inc. v. Superior Court* (1962) **57 Cal.2d 450, 455**: Stating that the decisions of the California Supreme Court are binding upon and must be followed by all the state courts of California.
4. *Mary M. v. City of Los Angeles* (1991) **54 Cal.3d 202, 212-213**: Holding that acquiescence by a party that made the appropriate objections and then received an adverse ruling does not establish invited error.
5. *Huffman v. Interstate Brands Corp.* (2004) **121 Cal.App.4th 679, 705-706**: Quoting the operative text of Code of Civil Procedure section 647 and holding that withdrawal of an objection did not establish the affirmative conduct demonstrating a deliberate tactical choice that invited error requires.
6. *Norgart v. Upjohn Co.* (1999) **21 Cal.4th 383, 403**: Explaining that the invited-error doctrine is an application of the estoppel principle and rests on preventing a party from misleading the trial court and then profiting from the error in the appellate court.
7. *People v. Saunders* (1993) **5 Cal.4th 580, 590, fn. 6**: Distinguishing waiver, the intentional relinquishment or abandonment of a known right, from forfeiture, the failure

to make the timely assertion of a right.

8. *City of Ukiah v. Fones* (1966) 64 Cal.2d 104, 107-108: Stating that waiver rests upon intent and must be proved by clear and convincing evidence that does not leave the matter to speculation, and that doubtful cases are decided against a waiver.
9. *People v. Beardslee* (1991) 53 Cal.3d 68, 97: Addressing the trial court's duty, when a deliberating jury asks a question, to consider how it can best aid the jury, and stating that where the original instructions are themselves full and complete the court has discretion under Penal Code section 1138 to determine what additional explanations are sufficient.
10. *Davis v. Erickson* (1960) 53 Cal.2d 860, 863-864: Treating a deliberating jury's request for the rereading of all of the instructions on a subject as a proper request under Code of Civil Procedure section 614, and holding the incomplete rereading prejudicial.
11. *Butigan v. Yellow Cab Co.* (1958) 49 Cal.2d 652, 656, *Satterlee v. Orange Glenn School Dist.* (1947) 29 Cal.2d 581, 589, and *Alarid v. Vanier* (1958) 50 Cal.2d 617, 621: *Butigan* construing former Vehicle Code section 544, the predecessor of section 22107, to re-

quire reasonable care rather than guaranteed safety, with breach normally a question of fact; *Satterlee* stating that an act performed in violation of a statute is presumptively an act of negligence; and *Alarid* stating that the presumption arising from a statutory violation is rebuttable and may be overcome by evidence of justification or excuse. Appellant does not ask this Court to decide excuse or rebuttal.

12. ***People v. Watson* (1956) 46 Cal.2d 818, 836:** Stating the reasonable-probability standard, that a miscarriage of justice exists when it is reasonably probable that a result more favorable to the appealing party would have been reached in the absence of the error.
13. ***Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 570-571, 580-581:** Holding that there is no automatic reversal or inherent prejudice for civil instructional error, whether of commission or omission, and enumerating the factors for measuring prejudice: the state of the evidence, the effect of other instructions, the effect of counsel's arguments, and any indications by the jury itself that it was misled.
14. ***Robinson v. Cable* (1961) 55 Cal.2d 425, 428:** Stating that the fact that only the bare number of jurors required to reach a verdict agreed upon the verdict for defendants lends further support to the probability that the erroneous

instruction was the factor which tipped the scales in defendants' favor.

15. ***LeMons v. Regents of University of California* (1978) 21 Cal.3d 869, 876-877:** Listing the closeness of the verdict and the jury's requests during deliberations among the factors for measuring prejudice, and holding that even if only one of the nine jurors who supported the verdict voted on the erroneous basis, the effect was prejudicial.
16. ***San Francisco Lumber Co. v. Bibb* (1903) 139 Cal. 325, 326:** Stating that counsel, under the former Code of Civil Procedure section 1138, may agree as to the facts but cannot control the reviewing court by stipulation as to the sole, or any, question of law to be determined under them.

C. Court records (Evid. Code, sections 452, subd. (d), 459, subd. (a); notice authorized; authenticated by the Declaration of Franciscus Dylan Rosario)

1. **Defense Exhibit 500 (Rosario Decl., Ex. A):** Plaintiff's Complaint for Personal Injuries, designated by defendants as Defense Exhibit 500 at trial, pleading Vehicle Code sections 22107 and 21804, subdivision (a).
2. **Jury Request Forms Numbers 1 through 3 (Super. Ct. doc. 09577565) (Rosario Decl., Ex. B):** The written requests submitted by the deliberating jury on April

23, 2025, and the trial court's written responses, with the time notations appearing on the forms.

3. **Certified Reporter's Transcript Volume 11 (Rosario Decl., Ex. C):** Transcribing the reported proceedings of April 23, 2025, including the trial court's rulings on Jury Request Forms Numbers 1 through 3 and the return of the verdict.

This Motion is based on this Notice, the accompanying Memorandum of Points and Authorities, the Declaration of Franciscus Dylan Rosario, the [Proposed] Order served and lodged herewith, the certified record on appeal, and the pleadings and records on file in this action.

MEMORANDUM OF POINTS AND AUTHORITIES
I. NOTICE OF THE LAW IS MANDATORY; NOTICE
OF THE COURT RECORDS IS AUTHORIZED

Evidence Code section 451, subdivision (a), makes judicial notice mandatory of "[t]he decisional, constitutional, and public statutory law of this state and of the United States." Evidence Code section 459, subdivision (a), provides that "[t]he reviewing court shall take judicial notice of (1) each matter properly noticed by the trial court and (2) each matter that the trial court was required to notice under Section 451 or 453," and that "[t]he reviewing court may take judicial notice of any matter specified

in Section 452." The word "shall" is mandatory. (*California Assn. of Health Facilities v. Dept. of Health Services* (1997) 16 Cal.4th 284, 297.) Notice of the matters in Parts A and B is therefore required. Notice of the court records in Part C is authorized by section 452, subdivision (d), and the last sentence of section 459, subdivision (a). Rule 8.252(a) supplies the procedure, and the accompanying Declaration addresses each element of rule 8.252(a)(2).

Judicial notice establishes the existence and content of the noticed law and records. It does not establish the truth of any characterization contained in a record. Notice that Reporter's Transcript Volume 11 records the statements "You've waived that request, sir" (RT Vol. 11, p. 6, l. 22) and "acquiescence" (*id.*, p. 10, l. 16) is notice of what was said, not a determination that a waiver or acquiescence occurred. This Motion does not ask the Court to adopt any legal position or to reach any particular disposition of the Petition.

II. RELEVANCE TO THE PETITION FOR REHEARING

The opinion filed September 10, 2026, holds that Appellant "forfeited his claim by agreeing to the trial court's response to the jury's question." The noticed records supply five neutral comparison points:

1. **Complete Request No. 1:** The form contains both the

question whether the jury should consider sections 22107 and 21804(a) and the follow-up request to be instructed.

2. **Two-clause response:** The form separately states that the jury may not consider the provisions and that the court will not instruct on them.
3. **Request No. 2 context:** Request No. 2 sought the definition of "vehicle"; the court supplied a Vehicle Code definition of vehicle and section 360's definition of "highway." (RT Vol. 11, p. 7, ll. 16-26.)
4. **Complete reported statements:** RT Volume 11 records "I do agree with the first one," the stated reason "because it is not part of the instructions," the reference to "the second one," and the complete speaker turn "No. I have objection ..." (Id., p. 4, ll. 1-25.)
5. **Trial court characterization and stated ground:** RT Volume 11 records the court's waiver statement, its later use of "acquiescence," and its explanation that the statutes were "not part of the evidence." (Id., p. 6, ll. 16-22; p. 7, ll. 4-9; p. 10, ll. 9-19.)

Those points present the source-of-agreement fork between the reported post-response colloquy and the unreported pre-delivery conference. The statutes and decisions in Parts A and B supply the law; the records in Part C supply the content and sequence.

The Petition carries the legal argument. This Motion identifies noticed material and its relevance only.

III. AUTHENTICATION OF THE COURT RECORDS

The Declaration of Franciscus Dylan Rosario authenticates Exhibits A through C, states why each is relevant, states whether each was presented to the trial court, identifies the statutory basis for notice, and confirms that none relates to proceedings after the judgment. (Cal. Rules of Court, rule 8.252(a)(2)(A)-(D).) The Declaration also describes, from personal knowledge, the unreported conference that preceded delivery of the trial court's response to Jury Request Number 1. That description is offered only to identify a disputed unreported event and to support the conditional request in Part IV. Appellant does not request judicial notice of the truth of that description, and the [Proposed] Order does not include it among the noticed matters.

IV. CONDITIONAL REQUEST FOR LIMITED RECORD SETTLEMENT UNDER RULE 8.155(c)(2)

The opinion's statement that the trial court responded "[w]ith the agreement of the parties" rests on a pre-delivery conference that was not reported. The reported session of April 23, 2025, convened on Jury Request Number 3, following the trial court's written responses to Requests Numbers 1 and 2 (RT Vol. 11, p. 3, ll. 5-11; Ex. B [Form 1, notations 10:09 and 10:37 A.M.; Form 2, notation 10:46 A.M.; Form 3, notations 2:19 p.m. and 2:40 p.m.]). When the trial court later stated that no objection had

been made, Appellant disputed that statement, stated that he had objected outside the presence of the reporter, invoked rule 8.137, and asked that the record be corrected or supplemented or that the record be reconstructed. (RT Vol. 11, p. 10, l. 23 to p. 11, l. 13.) The court asked, "Well, your objection is noted. What's the correction?" (id., p. 11, l. 14), Appellant answered (id., p. 11, ll. 14-24), and the court noted and overruled the objections (id., p. 11, l. 28 to p. 12, l. 4). No properly settled account of the unreported conference was prepared or certified.

Rule 8.155(c)(1) permits correction or certification of any part of the record; rule 8.155(c)(2) permits this Court to order the superior court to settle disputes about omissions or errors in the record. If the Court continues to treat the unreported conference as dispositive of forfeiture or invited error, Appellant requests that the Court direct the superior court to settle the limited dispute over (1) the precise proposed response shown to the parties, (2) whether both response clauses were presented, (3) what Appellant requested or objected to, (4) whether Appellant proposed the no-instruction clause, and (5) whether any tactical reason for withholding Vehicle Code section 22107 was stated, so that a properly settled account of that conference exists if the Court treats it as material. If the Court does not rely on the unreported conference, this request is moot and the judicial-notice order may issue on its own.

V. PRESERVATION UNDER RULE 8.500(c)(2)

Under California Rules of Court, rule 8.500(c)(2), the Supreme Court normally will accept the Court of Appeal opinion's statement of the issues and facts unless the party has called the Court of Appeal's attention to an alleged omission or misstatement in a petition for rehearing. This Motion, together with the Petition, presents the following eight points to this Court on rehearing to satisfy that preservation requirement:

1. **The jury's express request to be instructed is omitted.** The opinion quotes only the first sentence of Jury Request No. 1, omitting the jury's explicit second sentence:
"If so could we be instructed on those provisions?"
2. **Section 647 and *Lund* are not addressed.** The opinion uses "forfeited" / "agreeing" without applying the statute that eliminates non-objection.
3. **Disregard of the strict invited-error standard and chronological sequence.** The opinion treats post-response "agreement" as invited error without identifying affirmative conduct that induced the no-instruction clause, and its own statement of facts places the colloquy after the response.
4. **The record source of the asserted agreement is not identified.** The opinion does not state whether the asserted agreement rests on the reported post-response collo-

quy or on the unreported pre-delivery conference.

5. **Two response clauses are collapsed into one object of consent.** The only reported agreement is to "the first one," for the stated reason that the statutes were "not part of the instructions."
6. **Unresolved rule 8.137 record settlement request.** Appellant invoked California Rules of Court, rule 8.137, and asked that the record be corrected or supplemented as to the unreported pre-delivery conference; the objections were overruled.
7. **Section 614 merits and *Soule* prejudice are unaddressed.** Because the opinion rests on forfeiture, it does not reach whether the response satisfied section 614 and *Cook* or whether the refusal was prejudicial under *Soule*.
8. **Capacity under Civil Code section 3513 and *Bibb* is pleaded only if sufficient consent is found.**

CONCLUSION

Appellant respectfully requests that this Court issue an order taking judicial notice, under Evidence Code sections 451, subdivision (a), 452, subdivision (d), and 459, subdivision (a), of the statutes listed in Part A, the decisions listed in Part B, and the court records listed in Part C (Defense Exhibit 500; Jury Re-

quest Forms Numbers 1 through 3, Super. Ct. doc. 09577565; and Reporter's Transcript Volume 11). Alternatively, if the Court continues to treat the unreported conference concerning Jury Request Number 1 as dispositive, Appellant requests an order under California Rules of Court, rule 8.155(c)(2), directing the superior court to settle that limited record dispute so that a properly settled account of the conference exists.

Respectfully submitted,

DATED: September 11, 2026



/s/

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